TENTATIVE RULINGS

LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: July 20, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at **https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings** and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at https://www.occourts.org/media-relations/civil.html.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Privately_Retained_Court_Reporter_Policy.pdf.

1	**Hendrickson vs. The L3 Property Management** **30-2025-01519722**	<u>Motion to Be Relieved as Counsel</u> Counsel Phillip R. Geurts's Motion to Be Relieved as Counsel for Plaintiff Luke Mensink is CONTINUED to September 8, 2026 at 9:00 a.m. in Department N15. Counsel Phillip R. Geurts is ORDERED to file with the court and serve on all parties to this action pursuant to California Rules of Court rule 3.1362, an amended Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-052) and a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), that are completely and correctly filled out, within 15 days of this ruling. Counsel Phillip R. Geurts remains and shall continue to act as counsel of record for Plaintiff Luke Mensink. <u>Pending Motion</u> Counsel Phillip R. Geurts (Counsel) moves to be relieved as counsel for Plaintiff Luke Mensink. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, "[t]he motion to be relieved as counsel must be accompanied by a declaration on the *Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil* (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (Cal. Rules of Court, rule 3.1362(c), italics original.)

		In addition, "[t]he proposed order relieving counsel must be prepared on the *Order Granting Attorney's Motion to Be Relieved as Counsel--Civil* (form MC-053) and must be lodged with the court with the moving papers." (Cal. Rules of Court, rule 3.1362(e), italics original.) Motions to be relieved as counsel "must be served on the client and on all other parties who have appeared in the case" and service must be made by "personal service, electronic service, or mail." (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) "As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (*Ibid.*) If the motion is served by electronic mail, "it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (*People v. Prince* (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by good faith argument, (*Estate of Falco v. Decker* (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (*Aceves v. Superior Court* (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, "a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e)." (Rules Prof. Conduct, rule 1.16(d); see *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in "undue

		prejudice to the client's interests, " (*Ramirez vs. Sturdevant* (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (*People v. Ortiz* (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to withdraw "where such withdrawal would work an injustice or cause undue delay in the proceeding". (*Mandell v. Superior Court* (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (*Ibid.*) In this case, Counsel has failed to comply with the requirements of California Rules of Court rule 3.1362. While Counsel has served the motion papers upon Plaintiff Luke Mensink, Counsel has not stated in his declaration that Counsel has 1) confirmed within the last 30 days that the address is the client's current address or 2) that the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (See Decl. in Supp. of Att'y's Mot. to Be Relieved as Counsel – Civil, ¶ 3.) In addition, Counsel has not filed or served a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053). The California Rules of Court require that "[w]herever applicable, [mandatory forms] must be used by all parties . . . ." (Cal. Rules of Court, rule 1.31(a).) Therefore, the court will continue the hearing on this motion and order that Counsel file and serve a Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-052) and a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), that have been completely and correctly filled out. The court may deny the motion if Counsel fails to supplement the motion papers as required. Counsel shall give notice of this ruling in the manner ordered by the court.
2	**MacRobie vs. Forward Financing LLC** **30-2026-01552515**	<u>Application to Appear Pro Hac Vice</u> The Verified Application for *Pro Hac Vice* Admission of Courtney L. Hayden is GRANTED. <u>Pending Motion</u>

		Counsel Courtney L. Hayden of Goodwin Procter LLP in Boston, Massachusetts applies to appear as counsel *pro hac vice* for Defendant Forward Financing LLC. <u>Standards to Appear *Pro Hac Vice*</u> An attorney in good standing in another jurisdiction who has been retained to appear in a case pending this court may apply to appear as counsel *pro hac vice* in the State of California, so long as an active member of the State Bar of California is associated as attorney of record in the case. (Cal. Rules of Court, rule 9.40(a).) The attorney desiring admission *pro hac vice* must file a verified application and a proof of service showing service by mail of a copy of the notice of hearing and application on all parties who have appeared in the case and on the State Bar of California at its San Francisco office, along with payment of a $50.00 fee. (Cal. Rules of Court, rule 9.40(c)(1) & (e).) The application must state: 1. the applicant's residence and office addresses; 2. the courts to which the applicant has been admitted to practice and the dates of admission; 3. that the applicant is a member in good standing in those courts; 4. that the applicant is not currently suspended or disbarred in any court; 5. the title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and 6. the name, address, and telephone number of the active member of the State Bar of California who is attorney of record in the local action. (Cal. Rules of Court, rule 9.40(d).) The "application to be admitted 'pro hac vice' is addressed to the court's sound discretion." (*Big Lots Stores, Inc. v. Superior Court of San Diego County* (2020) 57 Cal.App.5th 773, 779.) However, courts have "embraced the conviction 'that the state should keep to a necessary minimum its interference with the individual's desire to defend himself in whatever

		manner he deems best.'" (*Magee v. Superior Court* (1973) 8 Cal.3d 949, 952, quoting *People v. Crovedi* (1966) 65 Cal.2d 199, 208.) Thus, the "right to appear by retained counsel of one's choice will tolerate the denial of an application for association only in extreme circumstances, although the attorney permitted to appear as counsel *pro hac vice* is "subject to the jurisdiction of the courts of California with respect to the law governing the conduct of attorneys." (*Magee v. Superior Court* (1973) 8 Cal.3d 949, 953, fn. 1.) Here, all of the requirements for *pro hac vice* admission have been met and the application is not opposed. The court will therefore grant the application. Defendant shall give notice of this ruling.
3	**Iserhien vs. The Irvine Company LLC** **30-2026-01539629**	<u>Motion to Compel Arbitration</u> Defendants The Irvine Company LLC's and Pilar Swenson's Motion Petitioning this Court to Stay this Action and Compel Arbitration is GRANTED. The parties are ORDERED to arbitrate the claims between them that are asserted in this action. This action shall be STAYED pending completion of the arbitration proceedings. The court SETS an ADR Review Hearing for January 21, 2027, at 10:00 a.m. in Department N15. <u>Pending Motion</u> Defendant The Irvine Company LLC's and Pilar Swenson move to compel arbitration of the claims asserted in the Complaint – Personal Injury, Property Damage, Wrongful Death (Complaint) filed by Plaintiff Brenna Emilia Valentina Iserhien and to stay this action pending completion of the arbitration proceedings. <u>Standard for Compelling Arbitration</u> The law of this state with respect to arbitration agreements is contained in the California Arbitration Act (CAA), Civil Procedure Code section 1280, *et seq.* Under the CAA, when a party to an arbitration agreement refuses to submit to arbitration, the other party may petition

		the court to compel arbitration and stay any pending lawsuit. (See Code Civ. Proc., § 1281.2; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218.) However, the right to arbitration is based on contract. (See *Little v. Pullman* (2013) 219 Cal.App.4th 558, 565.) Thus, the parties also may agree in the contract that the arbitration will be controlled by the Federal Arbitration Act (FAA). In addition, "[t]he FAA applies to any 'contract evidencing a transaction involving commerce' that contains an arbitration provision." (*Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 238, quoting 9 U.S.C. § 2.) The FAA states that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) The United States Supreme Court has described 9 U.S.C. section 2 as reflecting both a "'liberal federal policy favoring arbitration,'" and the "'fundamental principle that arbitration is a matter of contract.'" (*AT & T Mobility LLC v.* Concepcion (2011) 563 U.S. 333, 339, quoting *Moses H. Cone Memorial Hospital v. Mercury Constr. Corp.* (1983) 460 U.S. 1, 24 and *Rent–A–Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 67.) As with the CAA, when a party to an arbitration agreement governed by the FAA refuses to submit to arbitration, the other party may petition the court to compel arbitration and stay any pending lawsuit. (See 9 U.S.C. § 4.) On a motion to compel arbitration under the FAA, the court's role is limited to deciding: "(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute." (*Brennan v. Opus Bank* (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; see *Dean Witter Reynolds, Inc. v. Byrd* (1985) 470 U.S. 213, 218 ["By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration."].) When deciding whether a valid arbitration agreement exists, courts generally apply "ordinary state-law principles that govern the formation of contracts." (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 944.) Thus, the FAA permits arbitration agreements to be invalidated by "'generally applicable contract defenses, such as fraud,

		duress, or unconscionability.'" (*AT & T Mobility LLC v. Concepcion*, *supra*, 563 U.S. at p. 339, quoting *Doctor's Associates, Inc. v. Casarotto* (1996) 517 U.S. 681, 687.) The party seeking to compel arbitration bears an initial burden to make a *prima facie* showing the claims asserted in the complaint are covered by a valid agreement to arbitrate. (*Molecular Analytical Systems v. Ciphergen Biosystems, Inc.* (2010) 186 Cal.App.4th 696, 710-711.) Then, "the party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration." (*Green Tree Fin. Corp. v. Randolph* (2000) 531 U.S. 79, 91.) <u>Existence of Arbitration Agreement</u> With regard to the existence of an agreement to arbitrate, the party seeking to compel arbitration bears "the ultimate burden of proof, but the court [is] obliged to resolve the dispute using a three-step burden-shifting process." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.) The Court of Appeal explained that this process requires that: > The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. A movant can bear this initial burden "by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature." At this step, a movant need not "follow the normal procedures of document authentication" and need only "allege the existence of an agreement and support the allegation as provided in rule [3.1330]." > If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence — in this instance, by disputing the authenticity of their signatures. To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not *prove* that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature. (*Ibid.*, citations omitted, quoting *Espejo v. Southern California Permanent Medical Group* (2016) 246 Cal.App.4th 1047, 1060 and *Condee v. Longwood Management Corp.*, *supra*, 88 Cal.App.4th at pp 218-219.)

		The Court of Appeal in *Condee v. Longwood Management Corp.* held that the party seeking arbitration was only required to state or provide the provisions of the agreement requiring arbitration. (*Condee v. Longwood Management Corp.*, *supra*, 88 Cal.App.4th at pp. 218-219.) The party requesting arbitration was not required to follow the normal procedures to authenticate documents and Section 1281.2 "does not require the petitioner to introduce the agreement into evidence." (*Ibid.*) Here, Defendants submit the Addendum for Arbitration of Disputes and Class Action Waiver (Arbitration Agreement), attached to the Lease Agreement between Defendant The Irvine Company LLC and Darya Myers (Lease). (See Decl. of Melissa Matosic in Supp. of Defendants' Mot. Petitioning this Court to Stay this Action and Compel Arbitration (Matosic Decl.), Exh. A at pp. 17-18.) The Arbitration Agreement "shall be governed by, and all questions and disputes regarding arbitrability shall be determined in accordance with, the Federal Arbitration Act, 9 U.S.C. Sections l-16, notwithstanding any other choice of law provision." (*Id.* at p. 17.) The burden then shifts to Plaintiff to identify a factual dispute as to the agreement's existence. However, Plaintiff has failed to file an opposition or respond to the motion. Thus, Plaintiff has waived any arguments regarding the motion. (See *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, Defendants have established the existence of a valid arbitration agreement under the FAA. <u>Compelling Arbitration Against Non-Signatory</u> As noted above, the right to arbitration depends upon contract. (*Little v. Pullman*, *supra*, 219 Cal.App.4th at p. 565.) Here, there is no evidence that Plaintiff agreed to arbitrate her disputes against Defendants. Specifically, neither the Lease nor the Arbitration Agreement is signed by Plaintiff nor does either document make mention of Plaintiff. However, courts recognize "six theories by which a nonsignatory may [compel or] be bound to arbitrate: '(1)

incorporation by reference; (2) assumption; (3) agency; (4) veil-piercing or alter ego; (5) estoppel; and (6) third-party beneficiary.'" (*Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513, quoting 2 Oehmke, Commercial Arbitration (3d ed. 2006 update) § 41.57 at pp. 41–195.)

These exceptions to the general rule that one must be a party to invoke or be bound by an arbitration agreement "generally are based on the existence of a relationship between the nonsignatory and the signatory, such as principal and agent or employer and employee, where a sufficient 'identity of interest' exists between them." (*Jones v. Jacobson* (2011) 195 Cal.App.4th 1, 18 & fn. 9.)

Here, Defendant The Irvine Company, LLC's site manager, Melissa Matosic, declares that Darya Myers, a signatory to the Lease and Arbitration Agreement, is the mother of Plaintiff. (See Matosic Decl., ¶ 6.)

Defendants argue that Plaintiff thus is bound to arbitrate this case as a third-party beneficiary to the Lease and Arbitration Agreement.

It is not clear that Matosic has provided the proper foundation to state relationship between Darya Myers and Plaintiff.

Nor is it obvious that Plaintiff is a third-party beneficiary of the Lease and Arbitration Agreement, particularly as Plaintiff is mentioned nowhere in those documents.

However, Plaintiff has not objected to Matosic's declaration nor has she filed an opposition or other response to this motion. Plaintiff therefore has waived any objections or arguments.

The parties may agree to arbitrate their disputes at any time. Plaintiff's waiver and non-opposition is akin to an agreement to arbitrate.
Further, Defendants have made a non-frivolous argument that Plaintiff is bound to arbitrate this dispute.

Thus, Defendants have shown that Plaintiff is bound to arbitrate. (fn.1)

(fn.1) There also is a question whether Defendant Pilar Swenson, who is not a signatory to the Lease or Arbitration Agreement, may enforce its provisions. Defendants argue that Defendant Pilar Swenson may enforce the Arbitration Agreement as an employee of Defendant The Irvine Company LLC, which is a signatory; as a third-party beneficiary; and under the equitable estoppel doctrine. While the court has doubts about the first two of these bases, at a minimum, the third basis constitutes a non-frivolous argument. (See *Rowe*

		v. Exline (2007) 153 Cal.App.4th 1276, 1287 ["The equitable estoppel doctrine applies when a party has signed an agreement to arbitrate but attempts to avoid arbitration by suing nonsignatory defendants for claims that are 'based on the same facts and are inherently inseparable' from arbitrable claims against signatory defendants."].) In light of the fact that Plaintiff has not challenged Defendant Pilar Swenson's attempt to enforce the Arbitration Agreement or otherwise opposed the motion, the court need not address this issue further. <u>Scope of Arbitration Agreement</u> Before the parties can be ordered to arbitration, the court must carefully examine the terms of the contract and apply the statutory rules of contract interpretation. (See *Bono v. David* (2007) 147 Cal.App.4th 1055, 1063.) One overriding rule is that "[a] contract must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful." (Civil Code, § 1636.) The parties' intent "is to be inferred, if possible, solely from the written provisions of the contract, and the 'clear and explicit' meaning of these provisions, interpreted in their 'ordinary and popular sense,' controls judicial interpretation unless 'used by the parties in a technical sense, or unless a special meaning is given to them by usage.'" (*Montrose Chemical Corp. v. Admiral Ins. Co.* (1995) 10 Cal.4th 645, 647, quoting Civil Code, §§ 1638, 1639, 1644, citations omitted.) Therefore, "[i]f the meaning a layperson would ascribe to the language of a contract of insurance is clear and unambiguous, a court will apply that meaning." (*Montrose Chemical Corp. v. Admiral Ins. Co.*, *supra*, 10 Cal.4th at p. 647; see *Bank of the West v. Superior Court* (1992) 2 Cal.4th 1254, 1264 ["If contractual language is clear and explicit, it governs."].) However, "[i]f the terms of a promise are in any respect ambiguous or uncertain, it must be interpreted in the sense in which the promisor believed, at the time of making it, that the promisee understood it." (Civil Code, § 1649.) The contract provision also "may be explained by reference to the circumstances under which it was made, and the matter to which it relates." (Civil Code, § 1647; see *Weeks v. Crow* (1980) 113 Cal.App.3d 350, 353 [same].) In interpreting an arbitration agreement, "[t]he whole of a contract is to be taken together, so as to give effect to every part, if reasonably practicable, each clause helping to

		interpret the other.” (Civil Code, § 1641; see *Ticor Title Ins. Co. v. Rancho Sante Fee Ass’n* (1986) 177 Cal.App.3d 726, 730 [“A court must view the language in light of the instrument as a whole and not use a “disjointed, single-paragraph, strict construction approach.’”], quoting *Ezer v. Fuchsloch* (1979) 99 Cal.App.3d 849, 861.) In many cases, “the decision as to whether a contractual arbitration clause covers a particular dispute rests substantially on whether the clause in question is ‘broad’ or ‘narrow.’” (See *Bono v. David*, *supra*, 147 Cal.App.4th at 1067.) “A ‘broad’ clause includes those using language such as ‘any claim arising from or related to this agreement,’” (*ibid.*, citation omitted), or “‘arising in connection with the [a]greement,’” (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 186, quoting *Simula, Inc. v. Autoliv, Inc.* (9th Cir. 1999) 175 F.3d 716, 720–721). Here, the Arbitration Agreement states that: > Any dispute, claim or controversy arising out of or relating to this Lease or your tenancy with Landlord, including the breach, termination, enforcement, interpretation or validity thereof, and including the determination of the scope or applicability of this provision to arbitrate (‘Claim’ or ‘Claims’) shall be determined by binding arbitration in the County in which the subject Premises is located, before one neutral arbitrator. (Matosic Decl., Exh. A at p. 17.) Arbitration clauses such as this one have been classified as “broad” provisions. Under a broad arbitration provision, the “’factual allegations need only ‘touch matters’ covered by the contract containing the arbitration clause and all doubts are to be resolved in favor of arbitrability.’” (*Rice v. Downs*, *supra*, 248 Cal.App.4th at p. 186, quoting *Simula, Inc. v. Autoliv, Inc.*, *supra*, 175 F.3d at p. 721). Even a tort arising under or from a contract may be within the scope of a broad contractual arbitration provision. (*Coast Plaza Doctors Hosp. v. Blue Cross of California* (2000) 83 Cal.App.4th 677, 689; see also *Rice v. Downs*, *supra*, 248 Cal.App.4th at p. 186 [even under broad arbitration provision, “tort claims must ‘have their roots in the relationship between the parties which was created by the contract’ before they can be deemed to fall within the scope of the arbitration provision.” (*Rice v. Downs*, *supra*, 248

		Cal.App.4th at p. 188, quoting *Bos Material Handling, Inc. v. Crown Controls Corp.* (1982) 137 Cal.App.3d 99, 105.) Here, Matosic declares that the Lease is the reason Plaintiff resided on the relevant premises where the accident occurred. (See Matosic Decl., ¶¶ 2-3; see also Compl., Second Cause of Action, ¶ GN-1.) Defendants contend that, therefore, Plaintiff's claims arise out of or relate to the Lease. Consequently, the Lease Agreement is the root of Plaintiff's relationship with Defendant and the claims asserted herein arise therefrom. Again, Plaintiff has not objected to Matosic's declaration or otherwise opposed or responded to Defendants' argument, and thus, have waived any such objections or arguments. Accordingly, Defendants have established that Plaintiff's claims fall within the scope of the Arbitration Agreement. The court is required to grant the motion to compel arbitration. Defendants shall give notice of this ruling.
4	**Siddall vs. General Motors LLC** **30-2025-01465254**	<u>Motion to Strike and/or Tax Costs</u> Defendant General Motors LLC's Motion to Tax Counsel's Memorandum of Costs is GRANTED in part and DENIED in part. Defendant General Motors LLC is ORDERED to pay Plaintiff Marisol Siddal $2,529.39 in costs within 30 days of receiving notice of this ruling. <u>Pending Motion</u> Defendant General Motors moves to tax costs from the Memorandum of Costs filed by Plaintiff Marisol Siddal. <u>Standard to Seek Costs – Prevailing Party</u> Generally, the "prevailing party" is entitled as a matter of right to recover costs of suit in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606.) The "prevailing party" includes "the party with a net monetary recovery, a defendant in whose favor a dismissal is

entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc., § 1032, subd. (a)(4).)

In addition, the Song-Beverly Act specifically states that "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d.))

Here, the evidence shows that the parties agreed to settle this matter and that in the settlement agreement, the parties agreed that Plaintiff was the prevailing party and entitled to costs. (See ROA #39, Exh. A, ¶¶ 5-6.)

<u>Standard to Seek Costs – Recoverable Costs</u>

Civil Procedure Code section 1033.5 enumerates the specific costs that are recoverable by the prevailing party in a civil action. (See Code Civ. Proc, § 1033.5.)

Section 1033.5 also provides that the court may award costs not expressly described in the statute for expenses that are "reasonably necessary to the conduct of the litigation" and are "reasonable in amount." (Code Civ. Proc, § 1033.5, subd. (c)(2)-(4).)

While the trial court has discretion to decide whether a cost item was reasonably necessary, the trial court does not have discretion to award a cost item that is not statutorily authorized. (*Ladas v. California State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774.)

To recover costs, the prevailing party must file and serve a memorandum of costs "within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 3.1700(a).)

<u>Standard to Strike or Tax Costs</u>

After the prevailing party files and serves the memorandum of costs, the nonprevailing party has 15 days after service of the memorandum of costs to file a motion to strike a cost altogether, or to tax the cost and reduce it. (Cal. Rules of Court, rule 3.1700, subd. (b).)

		If the items on a memorandum of costs appear to be proper on their face, the verified memorandum of costs is *prima facie* evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (*Ladas v. California State Auto. Ass'n*, *supra*, 19 Cal.App.4th at p. 774.; see also *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131 ["If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they are not reasonable or necessary."].) However, once an item is shown to be not reasonable or necessary, it is put in issue and the burden of proof shifts to the party claiming the cost. (*Ibid*.) This burden is met by providing sufficient detail as to the reasonableness of the costs incurred. (See *Thon v. Thompson* (1994) 29 Cal.App.4th 1546, 1548-1549.) <u>Filing and Motion Fees</u> Defendant initially challenged a $60.00 "anticipated" filing fee, requested in connection with a motion for attorney's fees, on the basis that no such motion had been filed. However, the record and evidence shows that Plaintiff filed this motion on June 18, 2026. (See ROA #59; see Decl. of Matthew T. Goethals in Supp. of Pltf.'s Opp'n to Def.'s Mot to Tax Counsel's Mem. of Costs. (Goethals Decl.), ¶ 5, Exh. 2.) Defendant states that it is withdrawing the challenge to this cost. <u>Jury Fees</u> Defendant challenges $150.00 claimed for jury fees, arguing that the trial of this matter did not proceed and the court should disallow recovery of an item that is incurred unnecessarily. (See *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 245.) As an initial matter, jury fees are expressly allowable costs. (See Code Civ. Proc., § 1033.5, subd. (a)(1).) Further, a review of the record demonstrates that Plaintiff posted a jury fee before July 30, 2025. (See ROA #32; Goethals Decl., ¶ 8, Exh. 4.) This was well in advance of the settlement, which was entered into on November 19, 2025. (See ROA #39, Exh. A.) Furthermore, the jury fees are nonrefundable and must be paid in order to preserve a party's right to a jury trial. (Code

		Civ. Proc., § 631, subd. (b) ["At least one party demanding a jury on each side of a civil case shall pay a *nonrefundable fee* of one hundred fifty dollars ($150) . . . ."], italics added; *id.*, subd. (f)(5) [failure to pay jury fees pursuant to Section 631(b) may result in waiver of trial by jury].) Here, payment of the jury fees were reasonable and necessary to preserve Plaintiff's right to a jury trial, and shall be recovered by Plaintiff. <u>Court Reporter Fees</u> Defendant challenges $1,300.00 in "anticipated" court reporter fees, requested in connection with this motion and the motion for attorney's fees. Defendant argues that these fees have not yet been incurred and are unreasonable. Civil Procedure Code section 1033.5 specifically includes "Court reporter fees as established by statute" as a recoverable cost. (Code Civ. Proc., § 1033.5, subd. (a)(11).) In addition, the Government Code section 68086 states that "costs for the services of the official court reporter shall be recoverable as taxable cost by the prevailing party as otherwise provided by law," (Gov't Code, § 68086, subd. (c)), and "[t]he fees and charges of the certified shorthand reporter shall be recoverable as taxable costs by the prevailing party as otherwise provided by law," (Gov't Code, § 68086, subd. (d)(2)). Thus, it appears that these costs are reasonable. However, Civil Procedure Code section 1033.5 states that an award of costs is allowed only if "incurred". (Code Civ. Proc., § 1033.5, subd. (c)(1).) Civil Code section 1794, which controls Song-Beverly Act actions such as this one, also limits recoverable costs to those that are "determined by the court to have been reasonably *incurred* by the buyer in connection with the commencement and prosecution of such action." (Civil Code, § 1794, subd. (d), italics added.) Finally, the California Rules of Court require that a "memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily *incurred* in the case." (Cal. Rules of Court, rule 3.1700(a)(1), italics added.)

		While Plaintiff contends that these court reporter fees will be incurred, Plaintiff does not show that these costs have been incurred. (See Goethals Decl., ¶ 9.) Therefore, the court will grant the motion to tax $1,300 in court reporter fees. However, if these costs are actually incurred at a later date, Plaintiff may file an amended memorandum of costs that includes these court reporter fees and also include the anticipated attorney's time spent preparing and filing the amended memorandum of costs in its motion for attorney's fees. <u>Electronic Filing Fees</u> Defendant challenges $185.50 in "electronic filing fees," arguing that Plaintiff did not attach a worksheet or any verification of the alleged costs. However, Civil Procedure Code section 1033.5 states that recoverable costs include "[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents." (Code Civ. Proc., § 1033.5, subd. (a)(14).) Defendant concedes that such fees "are generally recoverable under Code of Civil Procedure section 1033.5(a)(15) [sic]." (Def.'s Reply Supporting Its Mot. to Strike or Tax Counsel's Mem. of Costs (Reply) at p. 4:18-19.) Further, the verified memorandum of costs is *prima facie* evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (See *Ladas v. California State Auto. Ass'n*, *supra*, 19 Cal.App.4th at p. 774.) In any case, Plaintiff did provide invoices to support these fees. (Goethals Decl., p 10, Exh. 6.) Defendant claims that the invoices "indicate that many of these costs relate to administrative filings, including notice of ruling, notice of posting jury fees, notice of continuance and notice of reassignment," and argues that "[r]outine administrative filings" should not be recoverable. (Reply at p. 4:19-21.) Defendant, however, provides no authority for the contention that costs related to administrative filings are not recoverable, even where they are reasonable and necessary for the conduct of the litigation.

		Thus, the court will deny the motion to tax these electronic filing fees. <u>Other (Mediation)</u> Defendant initially challenged a $600.00 mediation fee, asserting that Plaintiff had not attached any verification that the alleged costs were actually incurred in this case. As noted above, the verified memorandum of costs is *prima facie* evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (See *Ladas v. California State Auto. Ass'n*, *supra*, 19 Cal.App.4th at p. 774.) In any case, in its reply, Defendant acknowledges that "Counsel has provided adequate documentation in support of the $600.00 in claimed mediation costs and therefore [Defendant] withdraws its challenge to those costs." (Reply at pp. 2:23-25, 4:23.) Accordingly, the court will deny the motion to tax the mediation fee. <u>Other (Research and Anticipatory Fees)</u> Lastly, Defendant challenges $129.94 in "Research" fees, asserting the same constitutes overhead costs that are not passed on to the client and therefore are not recoverable. The Court of Appeal has held that "[f]ees for legal research, computer or otherwise, may not be recovered under section 1033.5." (*Ladas v. California State Auto. Ass'n*, *supra*, 19 Cal.App.4th at p. 776.) However, Civil Code section 1794 (as opposed to Civil Procedure Code section 1033.5) permits recovery of "costs and expenses" which are "determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such actions." (Civ. Code, § 1794, subd. (d).) The Court of Appeal has stated that "it is clear the Legislature intended the word 'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137, disapproved on other grounds, *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189.) Here, Plaintiff presents evidence that Plaintiff's Counsel incurred this electronic research cost in connection with this action, (see Goethals Decl., ¶12, Exh. 8), and Defendant presents no evidence to the contrary.

		Defendant also challenges $300.00 in “anticipated” costs that Plaintiff claimed in connection with the motion to tax and the motion for attorney’s fees, arguing again that such costs have not been incurred as of yet. Plaintiff presents evidence that $43.40 in electronic filing fees and $90.00 in delivery fees have been incurred. (See Goethals Decl., ¶ 13, Exh. 9.) There is no evidence that the remaining $166.60 in costs have been incurred. Therefore, for the reasons stated above, the court will grant the motion to tax $166.60 in other costs. However, if these costs are actually incurred at a later date, Plaintiff may file an amended memorandum of costs that includes these other fees and also include the anticipated attorney’s time spent preparing and filing the amended memorandum of costs in its motion for attorney’s fees. Plaintiff shall give notice of this ruling.
5	**Engineering Innovations, Inc. vs. Machining Time Savers, Inc.** **30-2025-01520244**	<u>Motion to Compel Arbitration and Joinder</u> The court has no written tentative ruling at this time. The court may provide a summary tentative ruling prior to the hearing and will hear from the parties or their counsel at oral argument.
6	**Rayhan vs. Memorial Health Services** **30-2024-01383926**	<u>Motion for Sanctions</u> Defendants Memorial Health Services’ and Orange Coast Memorial Medical Center’s Motion for Terminating Sanctions, or, in the Alternative for Evidentiary Sanctions to Strike/Exclude Plaintiffs’ Expert Testimony is DENIED. <u>Pending Motion</u> Defendants Memorial Health Services and Orange Coast Memorial Medical Center move for terminating sanctions with respect to the Second Amended Complaint for Damages (SAC) filed by Plaintiffs David Rayhan, M.D. and Syrus Rayhan, M.D.

In the alternative, Defendants move for evidentiary sanctions striking all evidence related to Plaintiffs' designated experts, Rabbi Jonathan Weiner and Dr. Ashraf Elsayegh.

<u>Timeliness of Opposition</u>

Civil Procedure Code section 1005 requires that “[a]ll papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing.” (Code Civ. Proc., § 1005, subd. (b).)

Defendants contend that Plaintiffs filed and served their opposition papers in an untimely manner.

However, Plaintiffs’ opposition papers were filed and served on July 7, 2026, nine court days before the hearing, as required by Section 1005(b). (See ROA #379, #381.)

Further, the Civil Procedure Code allows opposition papers to “be served by personal delivery, facsimile transmission, express mail, or other means consistent with Sections 1010, 1011, 1012, and 1013, and reasonably calculated to ensure delivery to the other party or parties not later than the close of the next business day after the time the opposing papers or reply papers, as applicable, are filed.” (Code Civ. Proc., § 1005, subd. (b).)

Plaintiffs served their opposition papers by electronic mail, which is considered the equivalent of facsimile or express mail service, and is reasonably calculated to ensure delivery by the close of the next business day after the papers were filed. (See Code Civ. Proc., § 1010.6, subd. (a)(3)(A) [“If a document may be served by mail, express mail, overnight delivery, or facsimile transmission, electronic service of that document is deemed complete at the time of the electronic transmission of the document or at the time that the electronic notification of service of the document is sent.”]; see also Code Civ. Proc., § 1010.6, subd. (b)(2) [“A person represented by counsel, who has appeared in an action or proceeding, shall accept electronic service of a notice or document that may be served by mail, express mail, overnight delivery, or facsimile transmission.”].)

Therefore, Plaintiffs’ opposition papers were not filed or served in an untimely manner and the court will consider them.

<u>Standard for Discovery Sanctions</u>

The trial court has expansive authority over discovery issues. (*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 596.)

		This authority includes the power to impose monetary, issue, evidence, terminating, or contempt sanctions against any person engaging in any misuse of the discovery process. (See Code Civ. Proc., § 2023.030, subd.s (a)-(e).) Misuse of the discovery process includes, but is not limited to, using a discovery method in a manner that does not comply with its specified procedures; employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden; failing to submit or to respond to an authorized method of discovery; and disobeying a court order to provide discovery. (See Code Civ. Proc., §§ 2023.010, 2030.300, subd. (e) [interrogatories], 2031.310, subd. (i) [requests for production of documents], 2033.290, subd. (e) [requests for admissions].) In addition, "[t]he court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence." (Code Civ. Proc., § 2023.030, subd. (c); see also *Lee v. Lee* (2009) 175 Cal.App.4th 1553, 1559.) Terminating sanctions are one of the most severe forms of sanctions and are imposed by: (1) striking out the pleadings, or parts of the pleadings, of any party engaging in the misuse of the discovery process, (2) staying further proceedings by that party until an order for discovery is obeyed, (3) dismissing the action, or any part of the action, or (4) rendering judgment by default against that party. (Code Civ. Proc., § 2023.030, subd. (d).) "The trial court may order a terminating sanction for discovery abuse 'after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.'" (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390, quoting *Lang v. Hochman* (2000) 77 Cal.App.4th 1225,1246.) In order to impose terminating sanctions, the party subject to sanctions must have failed to comply with previously issued court orders and the failure must be willful. (See *Lee v. Lee* (2009) 175 Cal.App.4th 1553, 1559 ["[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful."].)

		However, "[s]ome courts have held that the more serious sanctions may be imposed . . . even where no specific order has been violated, but those cases have involved repeated and willful refusals to permit discovery or produce documents over a lengthy period of time which resulted in evidence becoming unavailable." (*Maldonado v. Superior Court* (2002) 94 Cal.App.4th 1390, 1399.) As the Court of Appeal has explained: > [T]he courts have long recognized that the terminating sanction is a drastic penalty and should be used sparingly. A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party's fundamental right to a trial, thus implicating due process rights. The trial court should select a sanction that is "tailor[ed] . . . to the harm caused by the withheld discovery." (*Lopez v. Watchtower Bible and Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604, citations omitted, quoting *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.) "The discovery statutes thus 'evince an incremental approach to discovery sanctions, starting with *monetary* sanctions and *ending* with the ultimate sanction of termination. Although in extreme cases a court has the authority to order a terminating sanction as a first measure, a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective." (*Lopez v. Watchtower Bible and Tract Society of New York, Inc.*, *supra*, 246 Cal.App.4th at pp. 604-605, quoting *Doppes v. Bentley Motors, Inc.*, *supra*, 174 Cal.App.4th at p. 992, italics original; see also *Los Defensores, Inc. v. Gomez*, *supra*, 223 Cal.App.4th at p. 390 ["[A] decision to order terminating sanctions should not be made lightly."].) "The purpose of discovery sanctions 'is not to provide a weapon for punishment, forfeiture and the avoidance of a trial on the merits' but to prevent abuse of the discovery process and correct the problem presented." (*Parker v. Wolters Kluwer U.S., Inc.* (2007) 149 Cal.App.4th 285, 301, citations omitted, quoting *Caryl Richards Inc. v. Superior Court* (1961) 188 Cal.App.2d 300, 303; see *In re Marriage of Chakko* (2004) 115 Cal.App.4th 104, 109 ["In exercising its broad discretion to sanction discovery abuses, the trial court may impose any sanction authorized by statute that will enable the party seeking discovery to obtain the objects of the discovery sought."].)

		Thus, "[a] discovery sanction may not place the party seeking discovery in a better position than it would have been in if the desired discovery had been provided and had been favorable." (*Rail Services of America v. State Compensation Ins. Fund* (2003) 110 Cal.App.4th 323, 332.) In addition, "[d]iscovery sanctions 'should be appropriate to the dereliction, and should not exceed that which is required to protect the interest of the party entitled to but denied discovery.'" (*Doppes v. Bentley Motors, Inc.*, *supra*, 174 Cal.App.4th at p. 992, quoting *Laguna Autobody v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 487.) For example, terminating sanctions are warranted where a party repeatedly failed to respond to discovery responses for nearly one year, and disregarded two court orders, including one order warning that terminating sanctions would be the next step. (*Jerry's Shell v. Equilon Enterprises, LLC* (2005) 134 Cal.App.4th 1058, 1069.) <u>Expert Discovery</u> Here, Defendants seek terminating sanctions, arguing that Plaintiffs failed to comply with Civil Procedure Code section 2034.415, which provides that: An expert . . . whose deposition is noticed pursuant to Section 2025.220 shall, no later than three business days before his or her deposition, produce any materials or category of materials, including any electronically stored information, called for by the deposition notice. (Civ. Proc. Code, § 2034.415.) Defendants contend that Plaintiffs did not produce any of these materials with respect to Rabbi Jonathan Weiner and that they produced a voluminous amount of materials the evening before and the day of the deposition of Dr. Ashraf Elsayegh. However, Defendants never moved to compel production of these materials with respect to Rabbi Weiner nor did they move to compel the further deposition of Dr. Elsayegh to allow them time to review the produced materials. Defendants also did not move for monetary sanctions for Plaintiffs alleged violation of Section 2034.415. Thus, there is no court determination that Plaintiffs have misused the discovery process and any request for such a

determination must be made to Department CM02, which will handle all discovery disputes in this case.

That is the crux of the difficulty with this motion. Defendants have not shown that Plaintiff have violated an existing court order (as opposed to a discovery statute or rule).

Defendants have also failed to establish that Plaintiffs engaged in repeated and willful
violations of the Civil Discovery Act over a lengthy period of time. If anything, the fact that Plaintiffs produced a substantial materials for Dr. Elsayegh, albeit untimely, implies that their violations were not willful.

Further, granting terminating sanctions, or even evidentiary sanctions, at this time would not be consistent with the incremental approach that courts must take with respect to discovery sanctions.

Defendants have not compelled the production of missing materials or requested monetary sanctions with respect to either Rabbi Wiener or Dr. Elsayegh.

In addition, Defendants moved forward with the depositions of both expert witnesses but, after their depositions, did not request an additional opportunity to depose them after having a reasonable opportunity to review the materials produced or to be produced by them. (See Decl. of Dilkash A. Khan, Esq. (Khan Decl.), ¶¶ 9, 12-13, Exh.s 6, 8.)

These measures could have addressed Defendants' issues without the drastic remedy of evidentiary sanctions or terminating sanctions.

Such sanctions are generally reserved for cases in which a party persists in willfully disobeying the court's discovery orders.

Therefore, the court will deny the motion for sanctions.

Plaintiffs shall give notice of this ruling.

<u>Motion for Leave to Amend</u>

Plaintiffs David Rayhan, M.D.'s and Syrus Rayhan, M.D.'s Motion for Leave to File Third Amended Complaint is GRANTED.

Plaintiffs David Rayhan, M.D. and Syrus Rayhan, M.D. are ORDERED to file with the court and serve on all parties to this action the Proposed Plaintiffs' Third Amended Complaint, attached to the Motion for Leave to File Third Amended

		Complaint, and to file the appropriate proof(s) of service, within 30 days of this ruling. <u>Pending Motion</u> Plaintiffs David Rayhan and Syrus Rayhan move for leave to file the Proposed Plaintiffs' Third Amended Complaint (TAC), attached to the Motion for Leave to File Third Amended Complaint. <u>Standard for Leave to Amend</u> The Civil Procedure Code provides that: > The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489; *IMO Development Corp. v. Dow Corning* (1982) 135 Cal.App.3d 451, 461.) As the Court of Appeal has explained: > [T]rial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory – for example, an easement as opposed to a fee – no prejudice can result. (*City of Stanton v. Cox* (1989) 207 Cal.App.3d 1557, 1563.)

		With respect to the first requirement, "[t]he basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded." (*Union Bank v. Wendland* (1976) 54 Cal.App.3d 393, 400-401.) In other words, "[t]he power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant." (*Herrera v. Superior Court* (1984) 158 Cal.App.3d 255, 259.) With respect to the second requirement, prejudice that may support denying amendment includes "delay in trial, loss of critical evidence, or added costs of preparation." (*Solit v. Tokai Bank, Ltd. New York Branch* (1999) 68 Cal.App.4th 1435, 1448.) Thus, "[t]he law is [] clear that even if a good amendment is proposed in proper form, unwarranted delay in presenting it may — of itself — be a valid reason for denial." (*Roemer v. Retail Credit Co.* (1975) 44 Cal.App.3d 926, 939-940; see also *Bedolla v. Logan & Frazer*, *supra*, 52 Cal.App.3d at p. 136 ["The law is well settled that a long deferred presentation of the proposed amendment without a showing of excuse for the delay is itself a significant factor to uphold the trial court's denial of the amendment."].) The trial court has wide discretion in determining whether to allow amendment, but "the appropriate exercise of that discretion requires the trial court to consider a number of factors: '*including the conduct of the moving party and the belated presentation of the amendment*.'" (*Leader v. Health Ind. of America, Inc.* (2001) 89 Cal.App.4th 603, 613, quoting *Bedolla v. Logan & Frazer* (1975) 52 Cal.App.3d 118, 135-136, italics original.) Here, Plaintiffs seek leave to file the TAC to add additional facts and clarify allegations based on information obtained through investigation and discovery, and to add one additional claim for statutory violations. The amendments are based upon the same general set of facts as those upon which prior the complaints were grounded, which relates to Defendants' treatment of Plaintiff Syrus Rayhan, M.D. The Court of Appeal has held that it would be an abuse of discretion to deny amendment of the complaint under these circumstances. (See *Rainer v. Buena Community Memorial Hosp*. (1971) 18 Cal.App.3d 240, 254 ["[I]t would constitute an abuse of discretion not to permit the amendment of a

		complaint even at the outset of a trial, where the amendment merely adds a new theory of recovery on the same set of facts constituting the cause of action."].) Defendants contend that Plaintiffs do not specify when the information giving rise to the new allegations were discovered or why the motion for leave to amend was not brought earlier. However, Plaintiffs submitted evidence that the new information was discovered during the deposition of Annabella Braun, which was not taken until February 4, 2026. (See Decl. of Benjamin J. Fenton, Esq. in Supp. of Pltf.'s Reply in Supp. of Mot. for Leave to File Third Amend. Compl., ¶¶ 4-14, Exh. A.) It is an abuse of discretion to refuse amendment where that "results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense." (*Morgan v. Superior Court*, *supra*, 172 Cal.App.2d at p. 530.) This is true even if leave to amend is sought as late as the time of trial or even during trial. (See *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565; *Rainer v. Community Memorial Hosp.* (1971) 18 Cal.App.3d 240, 251-256.) Thus, "[i]n the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial." (*Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 965.) Defendants next argue that that granting leave to amend "would necessitate re-opening depositions and revisiting expert analyses all at substantial expense and with disruption to the case schedule." (Def.s' Opp'n to Pltf.s' Mot. for Leave to Amend the Compl. for the Third Time at pp. 8:15-16.) However, any amendments that add new claims have the potential to create this type of prejudice. This is not the type of *undue* prejudice that would support denial of the motion, but rather the normal and expected consequence of having additional claims asserted against a party. Defendants have not presented any evidence that the proposed amendments would *unfairly* increase the costs of discovery or trial preparation upon them, particularly as the trial is not set for another 8 months. The Court of Appeal has made it clear that it is "an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045,

		1048; see also *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 ["If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend . . . ."], citations and quotations omitted.) Defendant also attacks the validity of the claims asserted in the TAC. However, where the non-moving party argues that a proposed pleading is futile, "[l]eave to amend should be denied only where the facts are not in dispute, and the nature of the plaintiff's claim is clear, but under substantive law, no liability exists and no amendment would change the result." (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) Even where the amended pleading puts forth a novel legal theory, "the preferable practice would be to "permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) Here, the critical facts are in dispute and it is not clear, based on undisputed facts, that Plaintiffs' additional claim for statutory violations will fail. In any case, Defendants will still have the opportunity to challenge the new claim once the TAC is filed. Therefore, the court will grant the motion for leave to amend. Plaintiffs shall give notice of these rulings.
7	**NM Law, APC vs. Cano** **30-2024-01430114**	Motion to Set Aside Default Defendant Sharon Rachelle Cano's Motion to Set Aside Default and Default Judgment is CONTINUED to November 2, 2026 at 9:00 a.m. in Department N15. Defendant Sharon Rachelle Cano is ORDERED to serve upon Plaintiff NM Law, APC all of the motion papers for the Motion to Set Aside Default and Default Judgment and file the appropriate proof of service within 30 days of this ruling. Pending Motion Defendant Sharon Rachelle Cano moves to set aside the entry of default and default judgment entered against her. (See ROA #45.)

		<u>Service of Motion</u> The Civil Procedure Code requires that all motion papers must be served at least 16 court days before the hearing on the motion. (See Code Civ. Proc., § 1005, subd. (b).) In addition, the "[p]roof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." (Cal. Rules of Court, rule 3.1300(c).) The court records reveal that proof of service of the motion papers has been filed. In addition, Plaintiff has not filed an opposition or response to the motion, implying that it has not received the motion papers. In fact, the court records reveal that on May 22, 2026, Plaintiff's Counsel informed Defendant that Plaintiff had not received the motion papers. (See ROA #70, Exh. D at p. 1. ["Dear Ms. Cano, I understand you have filed a motion to set aside the default. We have not received a copy of the motion, so please send it to us at your first available opportunity. You may email or mail it ot [sic] our offices."].) Therefore, the court will continue the hearing on this motion and order that Defendant serve the motion papers and notice of this ruling on Plaintiff and file a proof of service showing service. The court may deny the motion if Plaintiff fails to serve the motion papers and notice of ruling, and file a proof of service, as required. Plaintiff shall give notice of this ruling.
8	**National Funding, Inc. vs. R&R Construction and Real Estate Development, Inc.** **30-2024-01433690**	<u>Motion to Set Aside Default</u> Defendants Ruben Reveles' and R&R Construction and Real Estate Development, Inc.'s Motion to Set Aside Default and Default Judgment is DENIED. <u>Pending Motion</u> Defendants Ruben Reveles and R&R Construction and Real Estate Development, Inc. move to set aside the default and default judgment entered against them in this case, pursuant to Civil Procedure Code section 473.5. (See ROA #13, #23.)

		<u>Setting Aside Default</u> Civil Procedure Code section 473.5 provides that: > When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. (Code Civ. Proc., § 473.5, subd. (a).) A motion brought pursuant to Section 473.5 must be "accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect" as well as "a copy of the answer, motion, or other pleading proposed to be filed in the action." (Code Civ. Proc., § 473.5, subd. (b).) <u>Defendant Ruben Reveles</u> In this case, Plaintiff filed proofs of service showing that both Defendants were served by substituted service when the summons and complaint were left with "Deanna," who was identified as a competent member of the household, on October 31, 2024, and then mailing the documents on November 5, 2024. (See ROA #10, #11). Defendant Ruben Reveles provides a declaration in which he states that: "I did not respond in the prescribed time because I was never personally served the Summons and Complaint." (Decl. of Def., Ruben Reveles, ¶ 5.) Defendant Ruben Reveles also declares that: "I was unaware of the court proceeding because I was never personally served any documents." (*Id.*, ¶ 9.) The court previously informed Defendants that Defendant Ruben Reveles' declaration was not sufficient because it did not state that he did not receive "actual notice in time to defend the action," as required by Section 473.5. (See ROA #54 at p. 3.) Defendant Ruben Reveles' declaration only states that he was not personally served. As the court previously explained: > However, personal service is not the issue because the proofs of service show that both Defendants were

		properly served by substituted service. (See Code Civ. Proc., § 415.20.) Further, the declaration does not affirm that Defendant Ruben Reveles' lack of notice was not caused by his avoidance or service or inexcusable neglect. In fact, he does not explain why he did not receive actual notice even though substituted service was effectuated in this case. (*Ibid.*) The court continued the hearing on the motion to allow Defendants to supplement the declaration, but warned that "unless Defendants provide evidence sufficient to meet the requirements of Section 473.5, the court must deny the motion." (*Ibid.*) Since the court continued the hearing on the motion more than 3 ½ months ago, Defendants have not supplemented the declaration. Therefore, for the reasons stated above and in its prior ruling, the court will deny the motion to set aside default. <u>Corporation Must Be Represented By Counsel</u> In its prior ruling, the court also informed Defendants that "Defendant R&R Construction and Real Estate Development, Inc. appears to be a corporation, which cannot represent itself and must retain counsel to act on its behalf in court." (See ROA #54 at p. 2.) The court also warned that "[t]herefore, unless Defendant R&R Construction and Real Estate Development, Inc. is represented by counsel, the court must deny the motion as to that corporation." (*Ibid.*) Since the court's last ruling, no counsel has appeared in this case to represent Defendant R&R Construction and Real Estate Development, Inc., nor has the corporation presented any evidence that it is represented by counsel in this case. Thus, the court will deny the motion to set aside default as to Defendant R&R Construction and Real Estate Development, Inc. The court clerk shall give notice of this ruling.
9	**Kelley vs. Sunshine Behavioral Health**	<u>Motion for Summary Adjudication</u>

	LLC **30-2024-01421448**	Defendant Sunshine Behavioral Health LLC dba Monarch Shores' Motion for Summary Adjudication is CONTINUED to November 30, 2026 at 9:00 a.m. in Department N15 pursuant to the court's orders of July 17, 2026. (See ROA #82.)
10	**Perez vs. City of Santa Ana** **30-2024-01374852**	<u>Motions for Summary Judgment and/or Summary Adjudication</u> Defendant Musco Sports Lighting, LLC's Motion for Summary Judgment, or in the Alternative, Summary Adjudication is taken OFF CALENDAR pursuant to the Request for Dismissal as to Defendant Musco Sports Lighting, LLC only from the First Amended Complaint, filed July 10, 2026 (ROA #263). Cross-Defendants Musco Sports Lighting, LLC's and RMF Contracting, Inc. dba R&M Electrical Contracting's Motion for Summary Judgment, or in the Alternative, Summary Adjudication is taken OFF CALENDAR pursuant to the Request for Dismissal as to Cross-Defendants RMF Contracting, Inc. and Musco Sports Lighting, LLC only, filed April 8, 2026 (ROA #254), and the Notice of Withdrawal of Motion for Summary Judgment, filed June 8, 2026 (ROA #258).